

I was aghast when I heard a member of Parliament say every state must be free to do as it chooses. We may be divided into different states for administrative convenience but the country is one integral whole

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Cases do come to a halt when the court is on vacation. But judges also handle 50-60 cases a day and need to go on holiday

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Same-sex marriage is a matter I leave to the wisdom of the country's people. Parliament is a reflection of the people's ideas. The issue has to be debated in Parliament. If the law passed runs contrary to the spirit of the Constitution, the court can intervene

WHO GETS TO JUDGE THE JUDGES? Arguments and counter-arguments



JUSTICE S.A. BOBDE
Former Chief Justice of India

IN DEFENCE OF THE JUDICIARY

Former Chief Justice of India S.A. Bobde's tenure saw verdicts on some of the most contentious cases of our times, including the Ayodhya temple judgment. That his tenure (November 2019 to April 2021) also coincided with the period when the country was in the grip of the Covid epidemic did not ease matters. The justice says the fact that there was no elevation of judges to the Supreme Court during his 18-month tenure wasn't without precedent as there had been longer periods when judges were not appointed. He said the collegium system wasn't to blame for this, it was the failure to arrive at a consensus on the names. The former CJI also denied there was any politics involved in the Ayodhya or Rafale verdicts.

Justice Bobde said that the executive's concerns over the issue of elevation of judges were perfectly le-